

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

ONE BANANA NORTH AMERICA CORP., *Complainant*

v.

HAPAG-LLOYD AG AND HAPAG-LLOYD (AMERICA) LLC,
Respondents.

DOCKET NO. 22-03

Served: February 7, 2022

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge.*

ORDER GRANTING MOTION TO AMEND COMPLAINT

Complainant One Banana North America Corp. (“One Banana”) initiated this proceeding by filing a complaint on January 19, 2022, alleging that Respondents Hapag-Lloyd, AG and Hapag-Lloyd (America) LLC (collectively “Hapag-Lloyd”) violated sections 41102(c) and 41104(a)(10) of the Shipping Act, due to their policies related to the pickup and return of Hapag-Lloyd reefer containers. On February 4, 2022, Complainant filed a motion, seeking leave to file an amended complaint, along with the proposed amended complaint with changes marked.

Complainant states that it seeks to amend its complaint because “it discovered an inadvertent omission to the Verified Complaint such that Complainant believes that justice would best be served by way of a verified amendment to the original Verified Complaint.” Motion at 1. Respondents have not yet filed an answer to the complaint. Complainant states that it conferred with Respondents, and they are not opposed to the proposed amendment. Motion at 2. The amended complaint does not add or change the parties.

Commission Rule 66(a) provides, in pertinent part, that amendments “will be permitted or rejected, either in the discretion of the Commission or presiding officer. No amendment will be allowed that would broaden the issue, without opportunity to reply to such amended pleading and to prepare for the broadened issues.” 46 C.F.R. § 502.66(a).

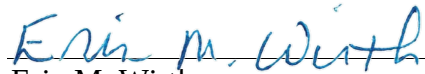
The rules do not provide criteria for evaluating whether to grant or deny a motion to amend a complaint, however, Commission Rule 12 provides that “for situations which are not covered by a specific Commission rule, the Federal Rules of Civil Procedure will be followed to the extent that they are consistent with sound administrative practice.” 46 C.F.R. § 502.12. Under Federal Rule 15(a)(1)(B), “a party may amend its pleading once as a matter of course” within 21 days after service of a responsive pleading. F.R.C.P. 15(a)(1)(B). After that period, an amended pleading is permitted with opposing party’s written consent or leave of court which, should be freely given when justice so requires. F.R.C.P. 15(a)(2). “Denial of leave to amend therefore

constitutes an abuse of discretion unless the court gives sufficient reason, such as futility of amendment, undue delay, bad faith, dilatory motive, undue prejudice, or repeated failure to cure deficiencies by previous amendments.” *Bancoult v. McNamara*, 214 F.R.D. 5, at *8 (D.D.C. 2003); *see also Foman v. Davis*, 371 U.S. 178, 182 (1962).

Respondents have not yet filed responsive pleadings, therefore, under Federal Rule 15(a)(1)(B), Complainant may amend its complaint “once as a matter of course.” Moreover, Respondents do not object to the proposed amendment and there are no grounds under the Federal Rules warranting denial of the proposed amendment. Complainant will thus be allowed to amend its complaint.

For the foregoing reasons, it is hereby

ORDERED that the motion to amend the complaint be **GRANTED**. Complainant should file the amended complaint without changes marked with the Secretary, copying opposing counsel and judges@fmc.gov by February 11, 2022. Respondents shall file their response to the amended complaint by March 4, 2022.



Erin M. Wirth

Chief Administrative Law Judge